

25PSCV00754 25PSCV00754

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Ryder Truck Rental, Inc v. Option One Transportation, LLC, Case No. 25PSCV00754

ORDER ON MOTION TO SET ASIDE DEFAULT

Defendant Option One

Transportation's motion to set aside default judgment is DENIED without

prejudice.

Background

Plaintiff Ryder Truck Rental, Inc. dba Ryder Transportation Services ("Plaintiff") alleges as follows:

On or about May 21, 2021, Plaintiff and Load 1 Trucking, LLC ("Load 1 Trucking") entered into a Truck Lease and Service Agreement ("Truck Lease"), wherein Plaintiff leased certain vehicles to Load 1 Trucking in exchange for payment. On or about March 31, 2022, Option One Transportation, LLC dba Option One Transportation ("Option One") entered into an Assumption Agreement with Plaintiff whereby Option One assumed all of Load 1 Trucking's rights, title and interest in and to the Truck Lease and attached schedules as of April 1, 2022. Option One failed to make payments. Following Option One's default, Plaintiff terminated the Truck Lease and made demand upon Option One to purchase the leased vehicles for the "Schedule A" Value plus any sales or use tax resulting from the sale, as per the Truck Lease. Plaintiff had to repossess the leased vehicles after Option One failed to repurchase them.

On March 5, 2025, Plaintiff filed a complaint, asserting a cause of action against

Option One and Does 1-10 for Breach of Lease Contract.

On June 24, 2025, default was entered against Option One Transportation.

On January 13, 2026, Judgement was entered against Option One Transportation.

Legal Standard

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473(b).)

“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Id.)

“Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Id.)

Discussion

Pending before the Court is Defendant Option One Transportation’s motion to set aside default judgment.

The motion is denied without prejudice because Defendant has failed to attach a copy of its proposed Answer. (See Code Civ. Proc. § 473(b) [providing that application seeking relief from default and default judgment “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted”].)

Accordingly, the motion to set aside default and default judgment is denied without prejudice.